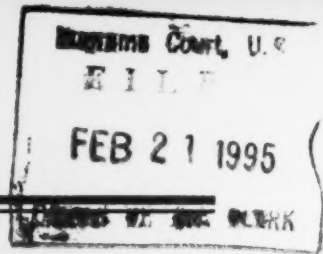


(5)
No. 94-859



In the Supreme Court of the United States

OCTOBER TERM, 1994

BRUCE BABBITT, SECRETARY OF THE INTERIOR, ET AL.,
PETITIONERS

v.

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, ET AL.

ON WRIT OF CERTIORARI TO THE
DISTRICT OF COLUMBIA CIRCUIT COURT OF APPEALS

JOINT APPENDIX

JOHN A. MACLEOD *
STEVEN P. QUARLES
CLIFTON S. ELGARTEN
THOMAS J. LUNDQUIST
Crowell & Moring
1001 Pennsylvania Ave., N.W.
Washington, D.C. 20004
(202) 624-2500

** Counsel of Record*
Attorneys for Respondents

DREW S. DAYS, III
Solicitor General
Department of Justice
Washington, D.C. 20530
(202) 514-2217

Counsel of Record
for Petitioners

PETITION FOR A WRIT OF CERTIORARI FILED:
NOVEMBER 10, 1994
CERTIORARI GRANTED: JANUARY 6, 1995

BEST AVAILABLE COPY

76pp



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UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA

Civ. A. No. 91-1468

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, ET AL., PLAINTIFFS

v.

MANUAL LUJAN, JR., Secretary of the Interior, JOHN
F. TURNER, Director, U.S. Fish and Wildlife Service,
DEFENDANTS

DOCKET ENTRIES

DATE	Nr.	PROCEEDINGS
1991		
6/14	1	COMPLAINT filed summons (4) issued (adc) [Entry date 06/25/91]
6/14	2	RULE 109 Certificate of disclosure of corporate affiliations and financial interests by plaintiff ERICKSON BUSHELING, plaintiff SOUTH- EASTERN LUMBER, plaintiff RIDGETREE LOGGING, plaintiff SHOTPOUCH LOGGING (adc) [Entry date 06/25/91]
6/24	3	AFFIDAVIT OF SERVICE of summons and com- plaint upon the U.S. Attorney General served per- sonally on 6/17/91 (accepted by Elgie Labbe, Sr., Clerk) (mbh) [Entry date 06/28/91]
6/24	4	AFFIDAVIT OF SERVICE of summons and com- plaint upon defendant JOHN F. TURNER served personally on 6/17/91 (Accepted by Carol Kester- son, Cheif, Docket & Records Control) (mbh) [Entry dated 06/28/91]

DATE Nr.

PROCEEDINGS

1991

- 6/24 5 AFFIDAVIT OF SERVICE of summons and complaint upon defendant MANUEL LUJAN JR. served personally on 6/17/91 (accepted by Jackie Ashton, Secretary) (mbh) [Entry date 06/28/91]
- 6/24 6 AFFIDAVIT OF SERVICE of summons and complaint upon U.S. Attorney for DC on 6/17/91 (Accepted by Secretary) (mbh) [Entry date 06/28/91]
- 8/16 7 ANSWER for defendant JOHN F. TURNER, defendant MANUEL LUJAN, JR. (mbh)
- 8/16 — CALENDARED (mbh)
- 8/29 8 MOTION by plaintiffs for summary judgment; Exhibits (9) (mbh) [Entry date 08/30/91]
- 9/3 9 JOINT MOTION by plaintiffs, defendants to extend time for federal defendants to file an opposition to plaintiffs' motion for summary judgment to 10/9/91, plaintiffs to file their joint opposition to cross motion for summary judgment and reply in support of motion for summary judgment to 11/1/91 and federal defendants to reply to cross motion for summary judgment to 11/15/91 (mbh) [Entry date 09/05/91]
- 9/6 10 ORDER by Judge Norma H. Johnson: granting joint motion to extend time for federal defendants to file an opposition to plaintiffs' motion for summary judgment to 10/9/91, plaintiffs to file their joint opposition to cross motion for summary judgment and reply in support of motion for summary judgment to 11/1/91 and federal defendants to reply to cross motion for summary judgment to 11/15/91 [9-1] by MANUEL LUJAN JR., PAT MCCOLLUM (N) (mbh) [Entry date 09/10/91]

DATE Nr.	PROCEEDINGS
1991	
9/19	11 MOTION by Movants HEADWATERS, NATIONAL AUDUBON SOC, OREGON NATURAL RES, PILCHUCK AUDUBON SOC, PORTLAND AUDUBON SOC, SEATTLE AUDUBON SOC, SIERRA CLUB, WILDERNESS SOCIETY for leave to intervene (1pp) [Entry date 09/20/91]
10/2	12 RESPONSE by defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. motion for leave to intervene [11-1] by intervenor (mbh) [Entry date 10/04/91]
10/9	13 MOTION by defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. for summary judgment (mbh) [Entry date 10/10/91]
10/9	14 MOTION by intervenors for leave to file brief amicus curiae in support of defendants' opposition to plaintiffs' motion for summary judgment; EXHIBITS: BRIEF AND DECLARATION (1) (mbh) [Entry date 10/10/91] [Edit date 10/10/91]
10/9	15 MOTION by defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. to dismiss; Exhibits (2) (mbh) [Entry date 10/10/91]
10/15	16 MOTION by defendant MANUEL LUJAN JR., and plaintiff SWEET HOME CHAPTER to extend time and modification of the briefing schedule established by the court's, dated 9/6/91 (dot) [Entry date 10/17/91]
10/16	17 ORDER by Judge Norma H. Johnson: granting motion to extend time and modification of the briefing schedule established by the court's, dated 9/6/91 [16-1] by SWEET HOME CHAPTER, MANUEL LUJAN JR. brief due 11/1/91; response to brief due 11/15/91; reply to brief due 11/22/91; (N) (mbh) [Entry date 10/22/91]

DATE Nr.

PROCEEDINGS

1991

- 10/22 18 NOTICE OF FILING of originally signed declaration of Julie Norman in support of motion to intervene by intervenor HEADWATERS (mbh) [Entry date 10/23/91]
- 10/23 19 MOTION by intervenors HEADWATERS, NATIONAL AUDUBON SOC, OREGON NATURAL RES, PILCHUCK AUDUBON SOC, PORTLAND AUDUBON SOC, SEATTLE AUDUBON SOC, SIERRA CLUB, WILDERNESS SOCIETY for leave to file reply brief in support of motion to intervene out of time (mbh) [Entry date 10/25/91]
- 10/31 20 MEMORANDUM by plaintiff in opposition to motion to dismiss [15-1] by MANUEL LUJAN JR., JOHN F. TURNER; exhibits (2) (cjp) [Entry date 11/04/91]
- 10/31 21 RESPONSE by plaintiffs in opposition to motion for summary judgment [13-1] by MANUEL LUJAN JR., JOHN F. TURNER and in reply on plaintiffs' motion for summary judgment (cjp) [Entry date 11/04/91]
- 11/15 22 REPLY by defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. to response to motion to dismiss [15-1] by MANUEL LUJAN JR., JOHN F. TURNER (kmk) [Entry date 11/19/91]
- 11/21 23 REPLY by intervenor HEADQUARTERS to motion for summary judgment [13-1] by MANUEL LUJAN JR., JOHN F. TURNER (cjp) [Entry date 11/22/91]
- 11/22 24 REPLY by defendants to response to motion for summary judgment [13-1] by MANUEL LUJAN JR., JOHN F. TURNER; attachment (clv) [Entry date 11/26/91]

DATE Nr.

PROCEEDINGS

1991

- 12/5 25 MOTION by plaintiff for leave to file surreply to motion for summary judgment; EXHIBIT (sur-reply) (clv) [Entry date 12/06/91]
- 12/10 26 MEMORANDUM OPINION by Judge Norman H. Johnson (N) (clv) [Entry date 12/12/91]
- 12/10 27 ORDER by Judge Norma H. Johnson: denying motion for leave to intervene [11-1] by intervenor (N) (clv) [Entry date 12/12/91]
- 12/20 28 RESPONSE by defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. in opposition to motion for leave to file surreply to motion for summary judgment [25-1] by plaintiff (cjp) [Entry date 12/24/91]
- 1/23 29 NOTICE OF APPEAL by plaintiff(s) from order [27-1] entered 12/10/91, Docket and filing fees paid: \$105.00, copies to: Robert Dreher, Victor M. Sher, Barry M. Hartman, and John A. Macleod (1pp) [Entry date 01/24/92]

1992

- 1/24 — TRANSMITTED PRELIMINARY RECORD on appeal [29-1] by plaintiff(s) to U.S. Court of Appeals (1pp)
- 1/24 30 NOTICE OF APPEAL (AMENDED) by proposed defendant intervenors HEADWATERS, NATIONAL AUDUBON SOC, OREGON NATURAL RES, PILCHUCK AUDUBON SOC, PORTLAND AUDUBON SOC, SEATTLE AUDUBON SOC, SIERRA WILDERNESS SOCIETY from order [27-1] entered 12/12/91. Fees paid 1/23/92. Copies mailed to Jean E. Williams, Esq., John A. Macleod, Esq., Steven P. Quarles, Esq., Thomas R. Lundquist, Esq., and Clair S. Brier, Esq. (mbd) [Entry date 01/27/92]

DATE Nr.

PROCEEDINGS

1992

- 1/27 — TRANSMITTED PRELIMINARY RECORD on appeal [30-1] by intervenor to U.S. Court of Appeals (mbd)
- 1/27 — USCA # 92-5024 assigned for appeals [29-1] by plaintiff(s) (clv) [Entry date 01/29/92]
- 1/29 — USCA # 92-5024 assigned for appeal [29-1] by plaintiff(s) (cjp) [Entry date 01/31/92]
- 5/29 31 MEMORANDUM AND ORDER by Judge Norma H. Johnson: denying motion to dismiss [15-1] by MANUEL LUJAN JR., JOHN F. TURNER (N) (jeb)
- 5/29 32 MEMORANDUM OPINION by Judge Norma H. Johnson (N) (jeb)
- 5/29 33 ORDER & JUDGMENT granting the motion of defendants for summary judgment; denying the plaintiffs' motion for summary judgment; entering judgment in favor of defendant JOHN F. TURNER, defendant MANUEL LUJAN JR. against plaintiff(s) PAT MCCOLLUM, plaintiff(s) EMMY G. BIRKENFELD, plaintiff(s) JEAN plaintiff(s) SHOTPOUCH LOGGING, plaintiff(s) RIDGETREE LOGGING, plaintiff(s) SOUTHERN TIMBER, plaintiff(s) SOUTHEASTERN LUMBER, plaintiff(s) ERICKSON BUSHELING, plaintiff(s) BETTY F. OREM, plaintiff(s) MILL CITY CHAPTER, plaintiff(s) SWEET HOME CHAPTER (N) (jeb)
- 7/9 34 NOTICE OF APPEAL by plaintiff(s) PAT MCCOLLUM, plaintiff(s) EMMY G. BIRKENFELD, plaintiff(s) JEAN REYNOLDS, plaintiff(s) SHOTPOUCH LOGGING, plaintiff(s) RIDGETREE LOGGING, plaintiff(s) SOUTHERN TIMBER, plaintiff(s) SOUTHEASTERN LUMBER, plaintiff(s) ERICKSON BUSHELING, plain-

DATE Nr.

PROCEEDINGS

1992

tiff(s) BETTY F. OREM, plaintiff(s) MILL CITY CHAPTER, plaintiff(s) SWEET HOME CHAPTER from order [31-1] entered on: 5/29/92. Fee paid. Copies mailed to, Jean Williams, David Gayer, Robert Dreher, Victor M. Sher (dmb) [Entry date 07/10/92]

7/10 — TRANSMITTED PRELIMINARY RECORD on appeal [34-1] by plaintiff(s) to U.S. Court of Appeals (dmb)

7/16 — USCA # 92-5255 assigned for appeal [34-1] by plaintiff(s) (1pp) [Entry date 07/20/92]

1994

12/6 35 CERTIFIED COPY of Judgment filed in USCA dated 7/25/94, on appeal [34-1], affirming the judgment of USDC.; No Opinion attached. USCA # 92-5255 (mbd) [Entry date 12/08/94]

12/8 36 CERTIFIED COPY of Order filed in USCA dated 12/7/94, requesting USDC to return the mandate issued on 12/6/94. USCA # 92-5255 (mandate returned to USCA on 12/8/94) (mbd)

UNITED STATES COURT OF APPEALS
DISTRICT OF COLUMBIA CIRCUIT

No. 92-5255

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, ET AL., APPELLANTS

v.

BRUCE BABBITT, Secretary of the
Interior, ET AL., APPELLEES

DOCKET ENTRIES

DATE	FILINGS—PROCEEDINGS
Lower court information:	
Date Filed: 6/14/91	
Date order/judgment: 5/29/92	
Date NOA filed: 7/9/92	
(N)07/14/92	Copy of notice of appeal and docket entries from Clerk, USDC (n-2)
(N)07/14/92	Docketing fee paid in district court 07/9/92
(N)07/14/92	Order 86-6: Initial submissions and procedural motions due 08/13/92; dispositive motions due 08/28/92. Docketing statement was mailed to appellant.
(N)07/30/92	5-Sweet Home Chapter (92-5024) motion to consolidate appeals and schedules (m-30) [8].
(N)07/30/92	2-Appellant's initial submissions (m-30) [15]. Def. Appendix—NO.

DATE	FILINGS—PROCEEDINGS
(N) 08/27/92	Per Curiam Order that the motion for voluntary dismissal of 92-5024 is granted. It is further Ordered that the motion to consolidate be dismissed as moot. It is further ordered that the motion to substitute 92-5255 for 92-5024 on the court's calendar is denied. The briefing schedule proposed by parties 92-5255 be adopted: Appellant's brief and appendix - 10/26/92; Appellee's brief 11/25/92 and Appellant's Reply brief 12/09/92. The Clerk is directed to place 92-5255 on the court's stand-by pool for the scheduling of oral argument. The Clerk is further directed to issue forthwith to respondent a certified copy of this order in lieu of formal mandate in 92-5024 only. The Clerk is also directed to file a copy of this order in both cases. Before: Mikva, Chief Judge; Silberman & Henderson Circuit Judges.
(CC) 10/06/92	Clerk's order scheduling case for oral argument on 02/17/93 at 9:30 a.m. before Chief Judge Mikva and Circuit Judges Williams and Sentelle; Form 72 due by 02/10/93.
(H) 10/26/92	15-APPELLANT'S BRIEF (p-26) [4 to 23].
(H) 10/26/92	7-JOINT APPENDIX (p-26) [4 to 23].
(N) 11/25/92	15-APPELLEES BRIEF (m-25)
(N) 12/09/92	15-APPELLANTS REPLY BRIEF (p-9).
(CC) 02/03/93	Per Curiam order allotting the following times for oral argument: Appellants - 20 minutes; Appellees - 20 minutes; The panel consists of Chief Judge Mikva and Circuit Judges Williams and Sentelle; Form 72 due by 02/10/93.
(WT) 2/17/93	ARGUED BEFORE: Chief Judge Mikva and Circuit Judges Williams and Sentelle.

DATE	FILINGS—PROCEEDINGS
(cb)7-23-93)	Opinion for the Court filed by Chief Judge Mikva. Chief Judge Mikva and Circuit Judge Williams, concurring. Circuit Judge Sentelle, dissenting.
(cb)7-32-93	Judgment for the Court that the judgment of the district court is hereby affirmed in accordance with the opinion for the Court filed herein this date.
(cb)7-23-93	Order delaying mandate.
(N)08/03/93	5-Appellee's bill of costs (m-3) [9].
(N)08/31/93	20-Appellants' petition for rehearing & suggestion for rehearing en banc (m-31) [1].
(N)11/04/93	Per Curiam Order that appellee file a response to the petition for rehearing & suggestion for rehearing en banc on or before 11/18/93.
(N)11/18/93	20-Appellees' response to petition for rehearing & suggestion for rehearing en banc (m-18) [1].
(N)01/05/94	20-Appellants' 28(j) Letter (m-5) [1].
(cb)3-11-94	Per Curiam Order for the Court that the petition for rehearing is granted, as set forth in the opinion of the court filed herein this date.
(cb)3-11-94	Per Curiam Order for the Court that the suggestion for rehearing <i>In Banc</i> is hereby denied.
(cb)3-11-94	Opinion for the Court filed by Circuit Judge Williams. Circuit Judge Sentelle concurring; and Chief Judge Mikva, dissenting.
(N)03/16/94	5-Appellees' motion to stay the mandate (m-16) [1].
(N)03/18/94	5-Appellees' amended motion to stay the mandate (m-18) [1].

DATE	FILINGS—PROCEEDINGS
(N) 03/24/94	Per Curiam Order that the motion to stay mandate is granted. The Clerk shall withhold issuance of the court's mandate through 4/25/94 and, should a petition for hearing be filed on or before that date, until 7 days after disposition thereof. Before: Mikva, Chief Judge; Williams and Sentelle, Circuit Judges.
(D) 04/12/94	5-Appellants' motion to expedite issuance of the mandate. (p-12) [1]
(N) 04/19/94	5-Appellees' response to motion to expedite issuance of the mandate (m-19) [1].
(N) 04/22/94	5-Appellants' reply to motion to expedite issuance of the mandate (p-22) [1].
(N) 04/25/94	20-Appellees' petition for rehearing and suggestion for rehearing in banc (m-25) [1].
(N) 05/02/94	Per Curiam Order that the motion to expedite mandate is denied. Before: Mikva, Chief Judge; Williams and Sentelle, Circuit Judges.
(N) 05/02/94	Per Curiam Order that the appellants respond thereto and do so on or before 5/17/94.
(N) 05/06/94	20-Appellees' letter informing the court of amendment to legislation (m-5) [1].
(N) 05/17/94	20-Appellants' in opposition to petition for rehearing (p-17) [1].
(N) 05/27/94	5-Appellees motion for leave to file a reply to opposition for petition for rehearing in banc (m-27) [1].
(N) 05/27/94	20-Appellees reply to opposition to petition for rehearing in banc (m-27) [1]. Lodged
(E) 06/06/94	5-Appellant (Sweet Home's Opposition to Government's Motion for Leave to File an Extraordinary Reply on a Hearing Petition (m-06) [1]

DATE	FILINGS—PROCEEDINGS
(E) 06/30/94	20-Supplemental to Motion for Petition for Rehearing <i>In Banc</i> (m-30) [1] (LODGED)
(E) 07/21/94	Per Curiam order of the letter, with attachment, dated June 30, 1994, from appellees, it is ORDERED, by the Court, that the Clerk is directed to file the aforesaid letter. (Mikva, Chief Judge; Wald, Edwards, Silberman, Buckley, Williams, Ginsburg, Sentelle, Henderson, Randolph and Rogers, Circuit Judges)
(E) 07/21/94	Supplemental to Motion for Petition for Rehearing <i>In Banc</i> (FILED PER ORDER OF JULY 21, 1994)
(E) 07/27/94	Per Curiam order of Appellees' Motion for Leave to File Reply to Memorandum of Appellants in Opposition to Petition for Rehearing with Suggestion for Rehearing <i>In Banc</i> and of the response thereto, it is ORDERED, by the Court <i>in banc</i> , that the motion is granted and the Clerk is directed to file the lodged reply. (Mikva, Chief Judge; Wald, Edwards, Silberman, Buckley, Williams, Ginsburg, Sentelle, Henderson, Randolph and Rogers, Circuit Judges)
(E) 07/27/94	Reply to Memorandum of Appellants in Opposition to Petition for Rehearing with Suggestion for Rehearing <i>In Banc</i> . (FILED PER ORDER OF 7/27/94)
(cb) 8-12-94	Per Curiam Order for the Court that appellee's petition for rehearing is hereby denied. Mikva, Chief Judge, Williams and Sentelle, CJs. Chief Judge Mikva would grant the petition. Statement by Williams, joined by Sentelle.

DATE	FILINGS—PROCEEDINGS
(cb)8-12-94	Per Curiam In Banc order denying suggestion for rehearing in banc. Chief Judge Mikva, Wald, Silberman and Rogers would grant the suggestion. Statement by Silberman joined by Chief Judge Mikva.
(cb)8-12-94	Foregoing orders and statements released as slip opinion.
(E)08/19/94	5-Federal Appellees' Motion to Stay the Mandate Pending Application to the Supreme Court for a Writ of Certiorari. (p-19) [1]
(H)08/22/94	5-Appellant's opposition to a further stay of the mandate (p-22) [1].
(E)09/15/94	Per Curiam order of Federal Appellees' Motion to Stay the Mandate Pending Application to the Supreme Court for a Writ of Certiorari and of the opposition thereto, it is ORDERED, by the Court, that the motion is granted. The Clerk is directed to withhold issuance of the mandate through September 19, 1994. (Williams and Sentelle, Circuit Judges)
(E)09/16/94	5-Federal Appellees Motion for Extension of Stay of Mandate Pending Application for Writ of Certiorari to the Supreme Court. (p-16) [1]
(E)09/20/94	5-Sweet Homes Opposition to the Government's September 16 Motion for a Further Stay of the Mandate. (p-20) [1]
(E)10/14/94	Per Curiam order of Appellees Motion to Stay the Mandate, and of the Opposition thereto, it is ORDERED that the motion is granted. The Clerk is directed to withhold issuance of the court's mandate through November 10, 1994. (Williams and Sentelle, Circuit Judges)
(E)10/14/94	SEE AUTOMATED DOCKET FOR FURTHER ENTRIES.

DATE	FILINGS—PROCEEDINGS
7/14/92	CIVIL-US CASE docketed. Notice of Appeal filed by Appellant Sweet Home Chptr, Appellant Mill City Chptr, Appellant Betty F. Orem, Appellant Erickson Busheling, Appellant SE Lumber Mftr Assoc, Appellant So Timber Purchases, Appellant Ridgetree Logging Co, Appellant Shotpouch Logging Co, Appellant Jean Reynolds, Appellant Emmy G. Birkenfeld, Appellant Pat McCollum. [78231-1] (lvs)
9/16/94	MOTION filed (5 copies) by Appellee Bruce Babbitt, Appellee John F. Turner (certificate of service dated 9/16/94) for Extension of Stay of Mandate Pending Application for Writ of Certiorari to the Supreme Court. Response due on 9/26/94. (lvs)
9/20/94	OPPOSITION filed [78240-1] (5 copies) by Appellant Sweet Home Chptr, et al., (Certificate of service dated 9/20/94) to the motion for stay of mandate [78234-1]. (lvs)
10/14/94	IMPORTANT NOTICE ABOUT DOCKET ENTRIES: Prior to this date, the above automated docket entries may not be complete. Please see the paper docket which is located in Clerk's Office. (lvs)
10/14/94	PER CURIAM ORDER filed granting motion withholding mandate filed by Bruce Babbitt, John F. Turner [78234-1] until 11/10/94. Before Judges Williams, Sentelle, (No 3rd Judge) (lvs)
11/16/94	NOTICE Filed by Clerk, Supreme Court of the filing of a petition for writ of certiorari on 11/10/94. Supreme Court docket No. 94-859. [92527-1] (jth)
12/5/94	MANDATE ISSUED to Clerk, District Court [88112-1]. (jas)

DATE	FILINGS—PROCEEDINGS
12/6/94	PER CURIAM ORDER filed granting appellees' bill of costs & costs be awarded to appellees in the amount of \$127.65 and taxed against appellants. Costs are payable directly between the parties and should not be submitted to the Clerk [88599-1]. Before Judges Mikva, Williams, Sentelle. (su)
12/7/94	CLERK'S ORDER filed recalling the mandate; The Clerk of the District Court is requested to return the mandate as promptly as the business of her office permits. (su)
12/7/94	MANDATE RETURNED from DC. (su)
12/8/94	CLERK'S ORDER filed amending Per Curiam order filed 12/6/94 by deleting "Mikva, Chief Judge" from the order [88599-1]. (su)
12/12/94	CLERK'S ORDER filed vacating Per Curiam order of 12/6/94 regarding costs; FURTHER ORDERED, sua sponte, that the bill of costs filed on 8/3/93 be dismissed. [88599-1]. (su)
12/12/94	NOTIFICATION from Appellee of filing of petition for certiorari on 11/10/94 [92526-1]. (jth)
1/12/95	NOTICE RECEIVED FROM CLERK, SUPREME COURT: Certified copy of order entered on 01/06/95, granting the petition for writ of certiorari to the USCA, DC. Supreme Court Docket No. 94-859. [95501-1] (jth)

UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA

Civ. A. No. 91-1468

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, ET AL., PLAINTIFFS

v.

MANUAL LUJAN, JR., Secretary of the Interior, JOHN
F. TURNER, Director, U.S. Fish and Wildlife Service,
DEFENDANTS

COMPLAINT FOR DECLARATORY
AND INJUNCTIVE RELIEF

I. INTRODUCTION

1. This is an action for declaratory and injunctive relief challenging two U.S. Department of the Interior regulations which are in excess of the regulatory authority conferred by the Endangered Species Act ("ESA"), 16 U.S.C. §§ 1531-44 (1988). The two challenged regulations are 50 C.F.R. § 17.3 (definition of "harm") and 50 C.F.R. § 17.31(a).

The ESA makes it unlawful to "take" an endangered species, 16 U.S.C. § 1538(a)(1)(B), and provides both civil and criminal sanctions for "taking" violations, *id.* § 1540. Both independently and collectively, the challenged regulations operate to extend the "taking" prohibition—and therefore the exposure to civil and criminal penalties—far beyond the limits intended by Congress in the ESA. By so doing, the regulations improperly and severely injure plaintiffs, denying them the use of

their lands and causing other hardships as described more fully below.

II. JURISDICTION AND VENUE

2. This Court has jurisdiction over this action under 28 U.S.C. § 1331 (federal question); 28 U.S.C. § 1361 (mandamus); 28 U.S.C. §§ 2201-02 (declaratory judgment); 16 U.S.C. § 1540(g) (ESA citizen suits); and 5 U.S.C. §§ 701-06 (judicial review of agency actions).

3. Venue in this Court is proper under 16 U.S.C. § 1540(g)(3)(A), and 28 U.S.C. § 1391(e)(1) and (2), since defendants officially reside in the District of Columbia and since the challenged regulations were signed there.

III. PARTIES

A. *Plaintiffs*

4. Plaintiff Sweet Home Chapter of Communities for a Great Oregon ("CGO Sweet Home") is a nonprofit, grass roots organization with its principal place of business in Sweet Home, Oregon. It was formed (a) to heighten the public awareness concerning the contributions of Sweet Home residents, families and businesses to the American economy, and (b) to offer support to community members who have been adversely affected by the listing of the northern spotted owl ("owl" or "spotted owl") as a threatened species under the ESA and by the regulations challenged in this lawsuit. Its members are individuals and families who live in and around Sweet Home, all of whom depend directly or indirectly on timber supply for their livelihoods and community institutions. Through the losses of jobs, reductions in revenues that support schools and other public projects in and around Sweet Home, and the increased societal burdens caused by the widespread inability to find work in their community, the members of CGO Sweet Home have been

and continue to be adversely affected by the challenged regulations. CGO Sweet Home brings this action on its own behalf and on behalf of its members.

5. Plaintiff Mill City Chapter of Communities for a Great Oregon ("CGO Mill City") is a nonprofit, grass roots organization with its principal place of business in Mill City, Oregon. It was formed (a) to educate the general public and elected officials concerning the contributions of Mill City residents, families and businesses to the American economy, and (b) to offer support to community members who have been adversely affected by the listing of the spotted owl and by the regulations challenged in this lawsuit. Its members are individuals and families who live in and around Mill City, all of whom depend directly or indirectly on timber supply for their livelihoods and community institutions. The members of CGO Mill City have suffered job losses, a deterioration of educational and other services which are substantially supported by timber revenues in their community, and increases in social welfare costs; in these and other ways, they have been and continue to be adversely affected by the challenged regulations. CGO Mill City brings this action on its own behalf and on behalf of its members.

6. Plaintiff Betty F. Orem is a resident of Port Angeles, Washington. She is the trustee for the Harold M. and Betty F. Orem Trust, the corpus of which is a 27-acre stand of timber that her father bought more than 60 years ago and which she now holds in trust for her daughter. The land abuts the Olympic National Forest and has been classified as a tree farm.

In May and June of 1989, while carrying out clear-cutting operations in the neighboring National Forest, the Forest Service burned and otherwise damaged a number of Mrs. Orem's trees. In considering her subsequent compensation claim, the Forest Service advised Mrs. Orem that she had a duty to mitigate the damage by harvesting

and selling the damaged trees for their salvage value. When she sought approval to conduct salvage operations and otherwise to maintain the value of her timber stand by routine thinning, however, Mrs. Orem's application was delayed and then substantially denied due to the presence of a spotted owl in the Olympic National Forest, about half a mile from her property. The restrictions imposed upon Mrs. Orem's use of her property, in reliance on the challenged regulations, have damaged Mrs. Orem by depriving her of needed income from the trust and by diminishing the value of the trust corpus.

7. Plaintiff Erickson Busheling, Inc. is a logging company with its principal place of business in Port Angeles, Washington. Erickson Busheling contracted with Plaintiff Orem to remove the trees that had been damaged by the Forest Service and conduct the other thinning she wanted done. It has not been able to perform under that contract because of the problems Mrs. Orem has experienced in securing approval of her application, as described in paragraph 6, and because harvesting her timber may be illegal under the challenged regulations. Erickson Busheling's ability to obtain other logging contracts has also been adversely impacted by the presence of the spotted owl in the area and the consequent restrictions imposed in reliance on the challenged regulations. As a result, Erickson Busheling has reduced its work force from 15 to 3 employees over the last 2 years.

8. Plaintiff Emmy G. Birkenfeld is the trustee for the William F. Birkenfeld Trust, the corpus of which includes 5600 acres of land eligible for timber harvesting near Carson, Washington. The income derived from harvesting timber from these lands supports Mrs. Birkenfeld, her two sons, and her sons' families. Mrs. Birkenfeld had been able to harvest timber from the 5600 acres until recently when spotted owls were discovered nearby, and under the regulations challenged in this lawsuit Mrs. Birkenfeld risks prosecution for an ESA "taking" if she harvests her

land. Every application for approval to harvest timber submitted by Mrs. Birkenfeld has been substantially denied.

Moreover, Mrs. Birkenfeld has been denied the right to harvest three parcels, each approximately 200 acres in size, for which approval had previously been given. After harvesting had begun pursuant to those approvals, the Washington State Department of Natural Resources issued stop orders to the trust, in reliance on the challenged regulations, claiming that its operations might harm or harass a spotted owl through habitat modification and therefore result in a take. Since the operations were allegedly within 1.8 miles of a known spotted owl nest or breeding pair and would reduce available suitable habitat for the owl, the state ordered all timber falling on these parcels stopped indefinitely.

Because of the foregoing restrictions which have been placed on Mrs. Birkenfeld's use of the trust property, in reliance on the challenged regulations, Mrs. Birkenfeld is currently unable to cut timber from *any* of the 5600 acres that would otherwise be available for harvesting. The Birkenfelds have accordingly been deprived of the needed income from the trust and, as a result, have lost the financial support that the trust was designed to provide.

9. Plaintiff Ridgetree Logging is a logging company with its principal place of business in Sweet Home, Oregon. It contracts to perform logging operations for a timber company that owns a large amount of land near Sweet Home. Because the spotted owl is found throughout the Sweet Home area and because the challenged regulations are being applied to create a threat of "taking" enforcement actions under the ESA, logging operations have been drastically curtailed by Ridgetree's timber supply source. As a result of the wrongful regulations, therefore, Ridgetree has had to lay off most of its employees, cannot

make insurance, tax and equipment payments, and will most likely fail.

10. Plaintiff Shotpouch Logging Company is a "timber falling" company with its principal place of business in Sweet Home, Oregon. It contracts to cut the trees for Ridgetree Logging Company on private lands in the Sweet Home area. For the reasons described in paragraph 9, Shotpouch also has no source of timber, has had to lay off most of its employees, cannot make insurance, tax and equipment payments, and will most likely fail.

11. Plaintiff Jean Reynolds is a resident of Sweet Home, Oregon. She owns and operates R&W Logging Company, which has its principal place of business in Sweet Home, Oregon. Ms. Reynolds had been logging National Forest and Bureau of Land Management timber, but was forced to begin logging private lands when the spotted owl was listed and the federal government halted most timber sales. Because spotted owls have been found on most private lands in the area and because of the threat of "taking" enforcement actions under the ESA, as applied through the challenged regulations, she has also been foreclosed from working on private lands and is now unable to operate. She has had to lay off all of her employees, cannot make insurance, tax and equipment payments, and R&W Logging is likely to fail. In addition, Ms. Reynolds is in danger of losing her home since it is the guarantee for some of her equipment. Like most of the other plaintiffs, she has substantial equipment loans which cannot be satisfied by selling the equipment, since the cutbacks in timber harvesting throughout the Pacific Northwest are causing equipment to be sold at auction for many times less than its value.

12. Plaintiff Pat McCollum is a resident of Sweet Home, Oregon. He is co-owner of McCollum Logging Company, a small family-owned contract logging company with its principal place of business in Sweet Home. He

had contracted to perform logging for a timber company that owns a large amount of land near Sweet Home. Because the spotted owl has been found throughout the Sweet Home area, and because the unlawful regulations challenged in this action are being applied to create a threat of an ESA "taking" prosecution, Mr. McCollum has no source of timber, has had to lay off most of his employees, cannot make insurance, tax and equipment payments, and his company will most likely fail. In addition, he owns a stand of timber that he had hoped to harvest and use for support for his retirement. A spotted owl nest has been found near his property, and under the challenged regulations he would not be able to harvest his own timber because of the same threat of prosecution under the ESA. His current livelihood and provisions for retirement are thus both undermined by the unlawful regulations challenged here.

13. Plaintiff Southeastern Lumber Manufacturers Association, Inc. ("SLMA") is a nonprofit organization with its principal place of business in Forest Park, Georgia. Its purpose is to promote the timber products manufactured by its members, who are small sawmill and planing mill operators in the Southeast. Much of the timber supply on which their mills depend comes from private lands throughout the Southeastern United States, a region in which the endangered red-cockaded woodpecker ("RCW") lives. Because of RCW-based curtailments imposed by the Forest Service on timber harvesting in National Forests in the Southeast and the threat of "taking" enforcement actions on private lands under the ESA, as applied through the challenged regulation defining "harm", SLMA members fear that they may wrongfully be deprived of their ability to continue in business and that their families and communities will suffer accordingly. SLMA therefore brings this lawsuit on its own behalf, for damage to its organizational interests, and on behalf of its adversely affected members.

14. Plaintiff Southern Timber Purchasers Council ("STPC") is a trade association with its principal place of business in Atlanta, Georgia. Its purpose is to promote the interests of its members who are purchasers of timber in the Southeastern Region of the United States. Its members depend on a timber supply from the Southeast, a region in which the endangered red-cockaded woodpecker ("RCW") lives. Timber harvest volumes in the Southeast have been reduced as a result of a court injunction to prevent "harm" type takings of the RCW and as a result of Forest Service initiatives in the rest of the region to prevent "harm" type takings. Because of these curtailments and the threat of takings enforcement actions under ESA § 9, as applied through the challenged regulations, the STPC members fear they may be wrongfully deprived of their ability to continue in business. The STPC brings this lawsuit on its own behalf and on behalf of its adversely affected members.

B. Defendants

15. Defendant Manuel Lujan, Jr., is the Secretary of the Interior ("Secretary"). The ESA confers rulemaking authority on the Secretary, and that authority was exercised in adopting the challenged regulations. Defendant Lujan is sued in his official capacity, and in that capacity he resides in Washington, D.C.

16. Defendant John F. Turner is the Director of the U.S. Fish and Wildlife Service ("FWS"), an agency within the U.S. Department of the Interior. The Secretary has delegated most of his ESA authority to the FWS Director, and that authority has been exercised in adopting the challenged regulations. Defendant Turner is sued in his official capacity, and in that capacity he resides in Washington, D.C.

CLAIMS FOR RELIEF

I. The Secretary's Definition of "Harm," at 50 C.F.R. § 17.3, Is Inconsistent with the ESA and Unlawfully Expands the ESA's "Take" Prohibitions

17. Paragraphs 1 through 16 are incorporated by reference.

18. Section 9 of the ESA makes it unlawful to "take" an endangered wildlife species. 16 U.S.C. § 1538 (a)(1)(B). A violation of § 9 may be punished by civil and criminal penalties. *Id.* § 1540.

19. "Take" is defined in the ESA as meaning "to harass, harm, pursue, hunt, shoot, wound, kill, capture, or collect, or to attempt to engage in any such conduct." *Id.* § 1532(19). The ESA does not define these component terms.

20. One of the component terms—"harm"—is defined in the Secretary's regulations to mean:

an act which actually kills or injures wildlife. Such act *may include significant habitat modification* or degradation where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering.

50 C.F.R. § 17.3 (emphasis added).

21. It is only through this regulatory definition of "harm" that the modification of habitat directly becomes a "take."

22. The definition of "harm" at 50 C.F.R. § 17.3 violates the ESA for at least the following reasons:

- (a) It is inconsistent with the plain language of the ESA.
- (b) It is inconsistent with the legislative history of the ESA, which demonstrates that Congress *specifically rejected* the inclusion of habitat modification as a prohibited take and instead

addressed habitat modification through other provisions of the ESA.

- (c) It renders other provisions of the ESA meaningless, including without limitation the "jeopardy" provisions of ESA § 7(a)(2), 16 U.S.C. § 1536(a)(2).
- (d) It creates *de facto* "critical habitat" without benefit of the statutory protections for designating such habitat, including notice-and-comment rulemaking and a consideration of the relevant economic impacts of such a designation.

23. The definition of "harm" at 50 C.F.R. § 17.3 has been and continues to be relied on by Defendants and other Federal and State officials in enforcing the "take" prohibition of ESA § 9.

24. In July 1990, for instance, in its broadest application to date, the definition of "harm" at 50 C.F.R. § 17.3 was relied on by Region 1 of the FWS in its issuance of a document entitled, "Procedures Leading to Endangered Species Act Compliance for the Northern Spotted Owl" ("Guidelines"). The Guidelines make it clear that timber harvesting or other habitat modification in an area as large as 3,960 acres surrounding an owl nest site or activity center will be cause for consideration of an ESA "take" prosecution. The Guidelines apply to private as well as public lands.

25. As a result of the enforcement reliance on the definition of "harm" at 50 C.F.R. § 17.3, the timber supply has been sharply curtailed on private lands in the Pacific Northwest and threatens similarly to be sharply curtailed on private lands in the Southeast. Because the regulatory definition unlawfully expands the ESA "take" prohibitions, the curtailments have occurred and threaten to occur throughout areas and for reasons far broader than Congress intended in the ESA.

26. Plaintiffs have been and will continue to be adversely affected by these overbroad curtailments, not only

through the economic injuries associated with job losses and business failures, but also through consequent social injuries such as decreased revenues for schools and other public services and increases in domestic violence, child abuse, drug and alcohol abuse, and homelessness.

27. On February 21, 1991, several of the Plaintiffs sent a 60-day notice of an ESA citizen suit to Defendants, as required by 16 U.S.C. § 1540(g). The notice advised Defendants of this claim, but no remedial action has been taken by Defendants.

II. The Secretary's Blanket Extension of the ESA's "Take" Prohibition to All Threatened Species, in 50 C.F.R. § 17.31(a), Is Inconsistent With the ESA

28. Paragraph 1 through 27 are incorporated by reference.

29. By its terms, the ESA prohibits only the taking of endangered species. It does not prohibit the taking of threatened species.

30. Section 4(d) of the ESA authorizes the Secretary to extend the taking prohibitions to individual threatened species, but he must do so "by regulation" and may do so only when "necessary and advisable to provide for the conservation of such species." 16 U.S.C. § 1533(d).

31. Despite the limiting requirements of ESA § 4, the Secretary has automatically extended the taking prohibition to *all* threatened species in 50 C.F.R. § 17.31(a).

32. The Secretary's regulation at 50 C.F.R. § 17.31(a) is inconsistent with the ESA and unlawfully expands the "take" prohibition of ESA § 9. Among other things, the Secretary's regulation operates to circumvent the Secretary's statutory obligation (a) to determine whether and to what extent the prohibitions should be applied to each individual threatened species, and (b) to make the "necessary and advisable" findings required to support those determinations. As a result, the Secretary has deprived the public of its statutory right to an explanation of the

reasons for applying the taking prohibitions to particular threatened species.

33. The Secretary's regulation at 50 C.F.R. § 17.31(a) has been and continues to be relied on by Defendants and other Federal and State officials to apply the ESA's "take" prohibition to certain threatened species, such as the spotted owl, despite the absence of a determination that the application of the prohibition is "necessary and advisable to provide for the conservation of such species" and the absence of a regulation reflecting that determination.

34. As a result, timber harvesting has been sharply curtailed throughout areas and for reasons far broader than Congress intended or the ESA contemplates. This unlawful expansion of the "take" prohibition to *all* threatened species, without regard to the statutory mandates, has adversely affected Plaintiffs and will continue to do so, causing them not only economic injury through job losses and business failures, but also consequent social injuries such as decreased revenues for schools and other public services and increases in domestic violence, child abuse, drug and alcohol abuse, and homelessness.

35. On February 21, 1991, several of the Plaintiffs sent a 60-day notice of an ESA citizen suit to Defendants, as required by 16 U.S.C. § 1540(g). The notice advised Defendants of this claim, but no remedial action has been taken by Defendants.

III. The Secretary's Definition of "Harm," at 50 C.F.R. § 17.3, Is Void for Vagueness

36. Paragraphs 1 through 35 are incorporated by reference.

37. Under ESA § 11, 16 U.S.C. § 1540, criminal and civil sanctions may be imposed upon persons who violate the "take" prohibition of ESA § 9. Since "harm" is a form of "take," those sanctions may be applied to per-

sons whose actions constitute "harm" as defined in 50 C.F.R. § 17.3.

38. The regulatory definition of "harm" fails to provide a discernible standard, and therefore prevents affected persons from adjusting their actions to avoid those sanctions. The regulation is therefore inconsistent with law because it is unconstitutionally vague.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs pray that the Court:

(1) Adjudge and declare that the challenged regulations, 50 C.F.R. § 17.3 (definition of "harm") and 50 C.F.R. § 17.31(a), are inconsistent with law;

(2) Set aside the challenged regulations and remand them to the Secretary;

(3) Enjoin the Defendants from seeking, either directly or indirectly, to enforce or apply the challenged regulations;

(4) Award Plaintiffs their costs and fees; and

(5) Grant Plaintiffs such further relief as may be appropriate.

Respectfully submitted,

/s/ John A. Macleod
JOHN A. MACLEOD
(Bar #008458)
STEVEN P. QUARLES
(Bar #351668)
CLAIRE S. BRIER
CROWELL & MORING
1001 Pennsylvania Avenue, N.W.
Washington, D.C. 20004-2505
(202) 624-2500
Attorneys for Plaintiffs

Of Counsel:

William R. Murray (Bar #204412)
American Forest Resource Alliance
1250 Connecticut Avenue, N.W.
Suite 250
Washington, D.C. 20036
(202) 463-2782

Dated: June 14, 1991

UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA

Civ. A. No. 91-1468

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, ET AL., PLAINTIFFS

v.

MANUAL LUJAN, JR., Secretary of the Interior, JOHN
F. TURNER, Director, U.S. Fish and Wildlife Service,
DEFENDANTS

ANSWER

COME NOW Federal Defendants Manual Lujan, Jr., Secretary of the Department of the Interior, and John F. Turner, Director, United States Fish and Wildlife Service, and through undersigned counsel submit the following Answer to plaintiffs' Complaint for Declaratory and Injunctive Relief:

1. The allegations contained in the first paragraph of Paragraph 1 are characterizations of plaintiffs' Complaint and require no response. The first sentence of the second paragraph of Paragraph 1 is a description of the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself. Federal Defendants deny the allegations contained in the balance of Paragraph 1.

2. The allegations contained in Paragraph 2 are conclusions of law which require no response. To the extent a response is required, they are admitted.

3. The allegations contained in Paragraph 3 are conclusions of law which require no response. To the extent a response is required, they are admitted.

4. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 4.

5. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 5.

6. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 6.

7. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 7.

8. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 8.

9. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 9.

10. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 10.

11. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 11.

12. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 12.

13. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 13, except to admit that the range of the endangered red-cockaded woodpecker extends into the Southeastern United States.

14. Federal Defendants are without sufficient information or knowledge to form a belief as to the allegations contained in Paragraph 14, except to admit that the range of the endangered red-cockaded woodpecker extends into the Southeastern United States.

15. The allegations contained in Paragraph 15 are admitted.

16. The allegations contained in Paragraph 16 are admitted.

17. Federal Defendants incorporate by reference the Answers to Paragraphs 1 through 16.

18. The allegations of Paragraph 18 are descriptions of the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself.

19. The allegations of Paragraph 19 are descriptions of the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself.

20. The allegations of Paragraph 20 are descriptions of a regulation promulgated under the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself.

21. The allegations of Paragraph 21 are denied.

22. The allegations of Paragraph 22 are denied.

23. The allegations of Paragraph 23 are admitted except to deny for lack of sufficient information and knowledge to form a belief as to whether "[t]he definition of 'harm' at 50 CFR 17.3 has been and continues to be relied on by" "other Federal and States officials in enforcing the 'take' prohibition of ESA § 9."

24. The allegations of Paragraph 24 are denied except to admit that Region 1 of the U.S. Fish and Wildlife Service issued a document in July 1990 entitled "Procedures Leading to Endangered Species Act Compliance for the Northern Spotted Owl," which speaks for itself.

25. The allegations of the first sentence of Paragraph 25 are denied for lack of sufficient information and knowledge to form a belief therein; the allegations of the second sentence of Paragraph 25 are denied.

26. The allegations of the first clause of Paragraph 26 which refer to "overbroad curtailments" are specifically denied; the balance of the allegations of Paragraph 26 are denied for lack of sufficient information and knowledge to form a belief therein.

27. The allegations of Paragraph 27 are admitted.

28. Federal Defendants incorporate by reference the Answers to Paragraphs 1 through 28.

29. The allegations of Paragraph 29 are descriptions of the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself; the allegations further call for a conclusion of law which requires no response.

30. The allegations of Paragraph 30 are descriptions of Section 4(d) of the Endangered Species Act, 16 U.S.C. 1533(d), which speaks for itself.

31. The allegations of Paragraph 31 are descriptions of 50 CFR 17.31(a) which speaks for itself. To the extent the allegations of Paragraph 31 require a response they are denied.

32. The allegations of Paragraph 32 are denied.

33. The allegations of Paragraph 33 which state that "[t]he Secretary's regulation at 50 CFR 17.31(a) has been and continues to be relied on" by Federal Defendants "to apply the ESA's 'take' prohibition to certain threatened species" are admitted. Federal Defendants deny for lack of sufficient knowledge and information to form a belief therein as to other Federal and State officials' actions in this regard. The balance of the allegations contained in Paragraph 33 are denied.

34. The allegations contained in the first sentence of Paragraph 34 which state that "timber harvesting has been sharply curtailed throughout areas" are denied for lack of sufficient knowledge and information to form a belief therein and the balance of the allegations contained in the first sentence of Paragraph 34 are denied. The allegations contained in the second sentence of Paragraph 34 are specifically denied as to plaintiffs Southeastern Lumber Manufacturers Association and Southern Timber Purchasers Council. The allegations contained in the second sentence of Paragraph 34 which state that plaintiffs will

be economically or socially injured by the allegedly "unlawful expansion of the 'take' prohibition" to threatened species are specifically denied; the balance of the allegations contained in paragraph 34 are denied for lack of sufficient information and knowledge to form a belief therein.

35. The allegations contained in Paragraph 35 are admitted.

36. Federal Defendants incorporate by reference the Answers to Paragraphs 1-35.

37. The allegations contained in Paragraph 37 are descriptions of the Endangered Species Act, 16 U.S.C. 1531 *et seq.*, which speaks for itself.

38. The allegations contained in Paragraph 38 are legal conclusions requiring no response but to the extent a response is required they are denied.

AFFIRMATIVE DEFENSES

1. The Complaint fails to state a claim upon which relief may be granted.

2. Plaintiffs Southeastern Lumber Manufacturers Association and Southern Timber Purchasers Council have no standing as to the second claim for relief.

Respectfully submitted,

BARRY M. HARTMAN
Acting Assistant Attorney General
Environment and Natural Resources
Division

JAMES C. KILBOURNE
Attorney
U.S. Department of Justice

/s/ Jean E. Williams
JEAN E. WILLIAMS
Attorney
Environment and Natural Resources
Division
Post Office Box 7369
Benjamin Franklin Station
Washington, D.C. 20044-7369
(202) 724-6375

Of Counsel:

DAVID GAYER
Attorney
U.S. Department of the Interior
Washington, D.C. 20240

PROCEDURES LEADING TO
ENDANGERED SPECIES ACT COMPLIANCE FOR
THE NORTHERN SPOTTED OWL

Including:

- Formal Section 7 Consultation Guidance
- Interim Recovery Strategy
- Conservation Planning for Non-Federal Actions
- Guidance for Incidental Take

U.S. Fish and Wildlife Service
Region 1
July 1990

This document was prepared by the U.S. Fish and Wildlife Service in Region 1, Portland, Oregon. For further information, please contact the following offices.

Mr. Wayne White, Field Supervisor
Fish and Wildlife Enhancement Field Station
U.S. Fish and Wildlife Service
2500 Cottage Way, Rm E-1823
Sacramento, California
FTS 460-4613 or 916-978-4613

Mr. Russ Peterson, Field Supervisor
Fish and Wildlife Enhancement Field Station
U.S. Fish and Wildlife Service
2600 SE 98th Ave.
Portland, Oregon 97266
FTS 429-6179 or 503-231-6179

Mr. Dave Fredrick, Field Supervisor
Fish and Wildlife Enhancement Field Station
U.S. Fish and Wildlife Service
Bldg. A, 2625 Parkmont Lane
Olympia, Washington 98502
FTS 434-9440 or 206-753-9440

Mr. Doug Smithey, Coordinator
Habitat Conservation Planning
U.S. Fish and Wildlife Service
1002 NE Holladay St.
Portland, Oregon 97232
FTS 429-6159 or 503-231-6159

Mr. Barry Mulder, Coordinator
Spotted Owl Program
U.S. Fish and Wildlife Service
1002 NE Holladay St.
Portland, Oregon 97232
FTS 429-6730 or 503-231-6730

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OWL PROCEDURES MANUAL

INTRODUCTION

With a listing decision now made for the northern spotted owl and an effective date of July 23, 1990, many people are wondering exactly what changes may occur to timber harvest programs in order to adequately protect the owl. In this document, the U.S. Fish and Wildlife Service (Service) describes its consultation, recovery, law enforcement (taking) guidelines, and conservation planning processes in an attempt to lay out procedures that are consistent with provisions of the Endangered Species Act (ESA), applicable on the effective date for listing of the northern spotted owl. With the cooperation of the other Federal agencies, as well as State and private entities, these guidelines outline the most efficient way of doing business under the ESA, at least for the first year after a listing, and would help meet the goals of other applicable laws and regulations.

PURPOSES

1. To provide clear examples of how ESA processes may work for the spotted owl.
2. To provide clarification of the Service's view of the Interagency Scientific Committee's (ISC) conservation strategy.
3. To put ESA spotted owl guidance in an understandable, manual-type format for distribution to Federal and non-Federal sectors as a working document.

BACKGROUND

- SECTION OF THE ESA—FORMAL CONSULTATION FOR FEDERAL ACTIONS

Federal agencies that fund, authorize, or carry out actions which "may affect" listed species must consult with the Service under Section 7. Federal actions that are nondis-

cretionary or that have "no adverse effects" on listed species are not subject to formal consultation. For timber harvest activities, the "may affect" standard applies to harvest activities within suitable owl habitat, as well as any harvest activities within a ½ mile radius of any known nest site or pair activity center. The Service believes that these actions represent a threshold standard for timber activities requiring formal Section 7 consultation.

* * * * *

[Page 9]

It is not possible to determine an exact point at which the continued existence of a species would be at jeopardy without fully analyzing proposed actions in relation to the environmental baseline. Therefore, the Service will analyze each Federal action submitted for formal consultation in turn and will make the "likely jeopardy/not likely jeopardy" finding on a case-by-case basis.

● INCIDENTAL TAKE GUIDELINES UNDER SECTIONS 7 AND 10

The taking of any listed species is generally prohibited under Section 9 of the ESA and implementing regulations. There are, however, a number of exceptions to the taking prohibition.

The 1982 Amendments to the ESA gave the Service procedures to authorize the "incidental take" of listed wildlife species. These procedures are contained in Sections 7 and 10 of the ESA. "Incidental take" in this context is take which is "incidental to, and not the purpose of, carrying out otherwise lawful activities" (See 16 USC 1539 and Sec. 10(a)(1)(B) of the ESA).

The Service offers the following general guidance to address "incidental" take of northern spotted owls that may occur incidentally to timber harvest or related activities. The Service gives notice that any incidental take of northern spotted owls that results from activities carried out in

a manner inconsistent with the guidelines (and not authorized under the provisions of Section 7 or Section 10 of the Act), will be subject to investigation by the Service pursuant to Section 9 of the Act.

It is important to note that the Service fully intends to consider all requests for incidental take authorizations under Section 7 (Federal) or Section 10 (State and private) of the Act, as appropriate. These interim guidelines are intended to present, to the best of our ability, guidance for addressing the need for incidental take authorization; and therefore to provide guidance for reducing potential conflicts with Section 9 of the Act.

An obvious incidental take situation would exist if an otherwise lawful timber harvest activity would result in the direct loss of any individual (adult or young), or an active nest (with young or eggs). It is more difficult to determine when incidental take of owls might occur as a result of altering habitat surrounding a nest site or activity center of a pair of spotted owls.

Even more difficult is assessing when owls may be harmed or harassed by cutting within their home range. In these less obvious situations, the Service recommends that the project proponent initiate a dialogue with the Service to discuss the potential risk of incidental take. In the absence of such dialogue, the Service offers the following stepwise approach which we believe is a reasonable procedure to reduce the risk that incidental take will occur. If the person engaged in timber harvest can demonstrate that these guidelines were followed, the Service does not intend to seek prosecution in the unlikely event that incidental take occurs in spite of implementing the guidelines.

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The focus of our incidental take guidelines is on northern spotted owls, including their eggs and young. We therefore recommend the following stepwise approach to avoid or reduce the risk of incidental take:

1. Conduct spotted owl surveys during the breeding season and prior to any harvest activity according to the Forest Service protocols addressed in the Interagency Scientific Committee report. The Service may suggest other owl survey techniques in the near future. Such surveys should be a standard practice for planning timber harvest activities.
2. Avoid any harvest activity which results in less than 70 acres of the best available suitable owl habitat encompassing the nest site and/or activity center of a pair of spotted owls.
3. Avoid any harvest activity which results in less than 500 acres of suitable habitat within a 0.7-mile radius (1000 acres) of a nest site and/or activity center. The 500 acres may include the 70 acres in No. 2 above and should be as contiguous as possible.
4. Avoid any harvest activity which results in less than a 40 percent coverage by suitable owl habitat within a circle with a radius centered on a nest site and/or center of activity and as prescribed by physiographic province (see Table 2). The 40 percent may include the acreage required in No. 2 and No. 3 above.

The Service recognizes that there is variation among individuals. Specific information on home range size, habitat use, nest site, or the center of activity of well-studied owls in similar habitat in the same portion of the range could be used to justify an exception to these guidelines and continue to avoid incidental take. In addition, habitat use information on which the above recommendations are based (see ISC 1990, USDI 1990) may change as a result of more recent studies, and the Service will continue to update its database to ensure that the most recent information is included.

To summarize the procedures for pursuing incidental take authorization for non-Federal activities, if incidental take is identified as a concern on State or private lands, individual landowners should consider development of a habitat conservation plan. The Section 10 (a)(1)(B) permit application can be submitted separately by individual applicants or through the appropriate State agency as described in the discussion on Section 10 permits in this document. The Service strongly encourages a pre-application dialogue with any potential permit applicant at any time.

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Table 2. Calculations to Develop Incidental Take Guidelines Based upon Home Range Size by Physiographic Province ¹

Province	Median Home Range Size		40 Percent of Median Home Range Size
	Acres	Radius	Acres
WASHINGTON			
Olympic Peninsula	9900	2.2 miles	3960
Cascades	6600	1.8 miles	2640
OREGON			
Cascades	2500	1.2 miles	1000
Coast Range	3400	1.3 miles	1360
Klamath	2500	1.2 miles	1000
CALIFORNIA			
Klamath	2500	1.2 miles	1000

¹ The Service will continue to revise this table as more data become available.

References:

- Interagency Scientific Committee. 1990. Conservation strategy for the northern spotted owl. Report of the Interagency Scientific Committee to address the conservation of the northern spotted owl. U.S. Department of Agriculture, Forest Service, and U.S. Department of the Interior, Fish and Wildlife Service, Bureau of Land Management, and National Park Service. Portland, Oregon.
- U.S. Department of the Interior. 1990. 1990 Status Review. Northern Spotted Owl. Report to the U.S. Fish and Wildlife Service. Portland, Oregon.

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• HABITAT CONSERVATION PLANNING UNDER SECTIONS 9 AND 10

A permit from the Service pursuant to Section 10(a)(1)(B) of the ESA authorizes incidental take much as a Section 7 consultation does through an "Incidental Take Statement" for Federal actions. However, Section 10 of the ESA typically applies to non-Federal actions. Individuals, corporations, non-Federal government entities, States, and other parties can apply for an incidental take permit by submitting an application and a habitat conservation plan to the Service. "Conservation Planning" is the term often used to refer to this process. In the case of the owl, the Service recommends maximizing efficiency of effort by developing a habitat conservation plan which includes the incidental take requests for a number of entities through the appropriate State land-managing agency.

The issuance of an incidental take permit by the Service is contingent upon the applicant's development of a Service-approved conservation plan for the listed species affected by the subject project or action (a more detailed document, "Draft Conservation Planning Guidelines," is available from the Service's Portland Regional Office). Such a conservation plan must specify:

1. The anticipated impacts likely to result in take of listed species;
2. the mitigation and monitoring measures the applicant will undertake to alleviate the impacts of the taking;
3. alternative actions to such taking that were considered;
4. why these alternatives were not employed;
5. funding that will be provided to implement the mitigation measures and attendant conservation plan; and

6. additional measures that the Service may require as necessary or appropriate for the conservation of the species.

Because applicants may have difficulty in adequately addressing these conservation planning needs independently, the Service generally works with an applicant throughout the pre-application phase. Adequate quantification of impacts (i.e., incidental take) usually requires that the applicant: (1) define the conservation planning, (2) collect necessary biological data on the species of concern, and (3) detail the proposed activities likely resulting in incidental take.

Upon receipt of the application and conservation plan, the Service may issue an incidental take permit if it determines that the following conditions have been met:

1. the taking will be incidental to the action;
2. the applicant will, to the maximum extent practicable, minimize and mitigate the impacts of taking;
3. the applicant will ensure that adequate funding will be provided for the conservation plan and procedures to deal with unforeseen circumstances;
4. the taking will not appreciably reduce the likelihood of the survival and recovery of the subject species in the wild;
5. the applicant will ensure that other measures required by the Service will be provided; and

[Page 13]

6. the plan will be implemented.

The third item above generally requires the development of an implementing agreement, which is a legal document binding all implementing parties to the proposed conservation plan.

The Service must also address the National Environmental Policy Act (NEPA) in the ESA Section 10(a)(1)(B)

permit process. In most cases the Service delegates the development of information needed for preparation of NEPA documentation to the applicant to expedite the process. In general, if the incidental take permit will result in a significant net loss of individuals and/or habitat, an EIS likely will be required. This often adds 9 months to 1 year to the process. Conversely, if the permit will result in a net gain or insignificant net loss of individuals and/or habitat, an environmental assessment leading to a finding of no significant impact likely will be sufficient for NEPA compliance. In such a scenario, a permit could be considered for issuance in as little as 3 months.

Section 10 and Northern Spotted Owls

Timber harvest on State and private lands may result in the incidental take of northern spotted owls. Because the States authorize private timber harvest, they may be party to take on private lands, as well as on State lands. In the absence of an incidental take permit, this take would be a violation of ESA. The implications for the northern spotted owl are considerable, since a large portion of the total harvest volume in the owl's range comes from non-Federal lands. At least in California, important numbers of owls occur on private lands; there are fewer owls on private lands in Washington and Oregon.

There are two approaches to managing the Section 10 process for spotted owls. One is for the individual landowner to prepare an HCP and apply for an incidental take permit for his lands. The second is for the State to prepare an HCP for all state and private timber lands. The Service would prefer to proceed with the latter approach, since it would add efficiency to the conservation planning process.

The States of Washington, Oregon, and California are at different stages in this process. In Washington and Oregon, the Service has notified the States of their potential

responsibilities and initial informational discussions are beginning. In California, the State Board of Forestry, Department of Forestry, Department of Fish and Game, industry representatives, and the Service have been meeting regularly since November, 1989.

The State of California is planning to prepare an HCP covering timber management throughout the range of the subspecies in the state. The California HCP and accompanying NEPA process probably may not be completed until sometime in 1991. During the interim period, the State would attempt to prevent take through a review process that supplements its existing timber harvest permit procedure. In the meantime, large industrial timber firms have indicated their intent to proceed with individual HCPs.

Federal Register/Vol. 40, No. 188
Friday, September 26, 1975/Rules and Regulations

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service -

[Page 44,412]

Title 50—Wildlife and Fisheries

CHAPTER I—UNITED STATES FISH AND WILDLIFE SERVICE, DEPARTMENT OF THE INTERIOR

SUBCHAPTER B—TAKING, POSSESSION, TRANSPORTATION,
SALE, PURCHASE, BARTER, EXPORTATION, AND IMPORTA-
TION OF WILDLIFE.

PART 17—ENDANGERED AND THREATENED WILDLIFE AND PLANTS

Reclassification of the American Alligator and Other Amendments

On July 8, 1975, the Service proposed certain changes in regulations on endangered and threatened wildlife (40 FR 28712). The proposal would reclassify the American alligator, removing it completely from an endangered or threatened status in a portion of its range. It also would add new provisions to Part 17 on similarity of appearance, on captive, self-sustaining populations, and on interpretations of prohibitions applicable to endangered and threatened wildlife. Finally, the proposal would establish a new format for lists of endangered and threatened wildlife. With the changes noted in this preamble, this rule-making adopts the proposal, effective September 26, 1975.

* * * * *

[Page 44,413]

SUBPART A (INTRODUCTION AND GENERAL PROVISIONS)

In the proposal, Subpart A contained a series of definitions necessary for proper implementation of the Act. Especially notable were the definitions of "industry and trade", which clarified the scope of some of the interstate commerce prohibitions, and of "harass", which clarified the scope of the prohibition on taking. The definition of "harass" has been retained in a modified form in this final rulemaking, to make it applicable to actions or omissions with the potential for injury. The concept of environmental damage being considered a "taking" has been retained, but is now found in a new definition, of the word "harm". "Harm" covers actions or omissions which actually, (as opposed to potentially), cause injury. In addition, the definition of "harass" has been modified by restricting its application to acts or omissions which are done intentionally or negligently. In the proposal, "harass" would have applied to any action, regardless of intent or negligence. Also, definitions of "endangered" and "threatened" have been added.

By moving the concept of environmental degradation to the definition of "harm", potential restrictions on environmental modifications are expressly limited to those actions causing actual death or injury to a protected species of fish or wildlife. The actual consequences of such an action upon a listed species is paramount.

These environmental restrictions represent a reasonable response to the habitat needs of listed species. Congress specifically acknowledged these needs by stating in the "Purposes" subsection of the Act: "The purposes of this Act are to provide a means whereby the ecosystems upon which endangered and threatened species depend may be conserved . . ." (87 Stat. 285, Section 2(b), 16 U.S.C. 1531(b)). Furthermore, Congress acknowledged that a rational relationship existed between the protection of the needs of listed species and the public welfare: "The Con-

gress finds and declares that . . . (3) these species of fish, wildlife, and plants are of esthetic, ecological, educational, historical, recreational and scientific value to the Nation and its people . . .” (87 Stat. 884, Section 2(a)(3), 16 U.S.C. Section 1541(3)).

It should be noted that this definition of “harm” which includes significant environmental modification, does not permanently limit the environmental modifications that are permissible for the habitat of a listed species of fish or wildlife. If the species was originally classified as endangered and made a significant recovery, it could be down-listed to threatened with regulations that don’t prohibit “takings”. Second, the species could recover completely and be delisted altogether. Finally, the species in question could abandon its use of the area. In all of these situations, the limited restrictions on environmental modification under the definition of “harm” would be removed.

* * * * *

[Final rule, page 44, ¶46]

§ 17.3

“Harm” in the definition of “take” in the Act means an act or omission which actually injures or kills wildlife, including acts which annoy it to such an extent as to significantly disrupt essential behavioral patterns, which include, but are not limited to, breeding, feeding or sheltering; significant environmental modification or degradation which has such effects is included within the meaning of “harm”;

* * * * *

Federal Register/Vol. 46, No. 105
Tuesday, June 2, 1981/Proposed Rules

[Page 29,490]

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

50 CFR Part 17

Endangered and Threatened Wildlife and Plants; Proposed Redefinition of "Harm"

AGENCY: Fish and Wildlife Service, Interior Department.

ACTION: Proposed rule.

SUMMARY: This proposed rule is a redefinition of the Service regulations defining "harm" under Section 9 of the Endangered Species Act, 50 CFR 17.3. "Harm" would be redefined to mean an act or omission which injures or kills an endangered or threatened species of wildlife rather than the broader present interpretation which can be read to include significant environmental modification or degradation without further proof of actual injury or death to a listed species. This redefinition is proposed to eliminate the confusion that commentators and courts have had with the present definition.

DATE: Comments on this proposed rule must be submitted on or before August 3, 1991.

ADDRESSES: Interested persons or organizations are requested to submit comments to the Director (OES), United States Fish and Wildlife Service, Department of the Interior, Washington, D.C. 20240. Comments and materials relating to this rule are available for public in-

spection by appointment during normal business hours at the Service's Office of Endangered Species, Suite 500, 1000 North Glebe Road, Arlington, Virginia.

FOR FURTHER INFORMATION CONTACT: Mr. John L. Spinks, Jr., Chief, Office of Endangered Species (703/235-2771).

SUPPLEMENTARY INFORMATION: This Fish and Wildlife Service and the Office of the Solicitor recently completed a review of the Fish and Wildlife Service definition of "harm" in its regulations under the Endangered Species Act of 1973, 16 U.S.C. 1531 *et seq.* That review was prompted by the confusion which the courts and commentators seem to have had with the definition the few times they have dealt with it, and by the uniform opinion of legal commentators that the present definition goes beyond intent of Congress. Bean, *The Evolution of National Wildlife Law*, 395-97 (1977); Note, *Endangered Species Act: Constitutional Tension and Regulatory Discord*, 4 Colum. J. Env't'l L. 97, 100 n. 19 (1977); Note, *Endangered Species Act of 1973: Preservation or Pandemonium?*, 5 Env't'l L. 29, 38-41 (1974); Note, *Obligations of Federal Agencies Under Section 7 of the Endangered Species Act of 1973*, 28 Stan. L. Rev. 1247, 1251 n. 31 (1976).

Section 9 of the Endangered Species Act (ESA), 16 U.S.C. 1538, makes it illegal to "take" an endangered species of fish or wildlife. That term is defined as follows:

The term "take" means to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture or collect, or to attempt to engage in any such conduct.

16 U.S.C. 1531(19). Fish and Wildlife Service Regulations define "harm" as follows:

"Harm" in the definition of "take" in the Act means an act or omission which actually injures or kills wildlife, including acts which annoy it to such an extent as to significantly disrupt essential behavioral patterns, which include, but are not limited to,

breeding, feeding or sheltering; significant environmental modification or degradation which has such effects is included within the meaning of "harm."

50 CFR 17.3.

This definition contains a significant ambiguity. If the words "such effects" are read to refer to the phrase "significantly disrupt essential behavioral patterns," then any significant environmental modification or degradation that disrupts essential behavioral patterns will fall under the definition of harm, regardless of whether an actual killing or injuring of a listed species of wildlife is demonstrated. Under such an interpretation, a showing of habitat modification alone would be sufficient to invoke the criminal penalties of Section 9.

In an opinion dated April 17, 1981, the Solicitor's Office concluded that such a result is inconsistent with the intent of Congress.

The Service notes that although the definition of "harm" has been the subject of a number of privately initiated civil environmental actions, in none of those lawsuits was the underlying validity of the present definition reviewed or briefed. The Service also notes that there has never been a prosecution initiated by the Fish and Wildlife Service under the present definition and the redefinition is not expected to have any significant effect on future enforcement actions or strategy.

Therefore, in light of the April 17, 1981 Solicitor's Office opinion, the Service believes that it is appropriate to redefine "harm" under the Endangered Species Act.

Appendix

Although it will not appear in the Code of Federal Regulations, a copy of the opinion of the Solicitor's Office is attached as an Appendix solely for purposes of public information.

National Environmental Policy Act

A draft environmental assessment has been prepared in conjunction with this proposal. It is on file in the Office of Endangered Species, Suite 500, 1000 North Glebe Road, Arlington, Virginia, and may be examined by appointment during regular business hours. A determination will be made at the time of final rulemaking as to whether this is a major Federal Action which would significantly affect the quality of the human environment within the meaning of Section 102(2)(C) of the National Environmental Policy Act of 1969, 42 U.S.C. 4332(C).

Primary Author

This proposal was written by David C. Cannon, Jr., Office of the Solicitor, Department of the Interior, Washington, D.C. 20240. (202/343-2172).

Note.—The Department of the Interior has determined that this is not a major rule and does not require preparation of a regulatory analysis under Executive Order 12291.

The Department has also determined that the rule will not have a significant economic impact on a substantial number of small entities under the Regulatory Flexibility Act. These determinations are discussed in more detail in a Determination of Effects which has been prepared by the U.S. Fish and Wildlife Service.

Proposal of Regulation

§ 17.3 [Amended]

Accordingly, it is hereby proposed to amend 50 CFR 17.3 by removing the existing definition of "harm" and inserting the following:

* * * * *

"Harm" in the definition of "take" in the Act means an act or omission which injures or kills wildlife.

Dated: May 11, 1981.

* * * * *

C. F. Layton,

*Acting Deputy Assistant Secretary, Fish and Wildlife and
Parks.*

April 17, 1981.

Memorandum

To: Director, Fish and Wildlife Service

From: Associate Solicitor, Conservation and Wildlife

Subject: Fish and Wildlife Service

Regulations Defining "Harm" under Section 9 of the
Endangered Species Act

This memorandum examines the statutory authority underlying the definition of "harm" contained in FWS regulations implementing Section 9 of the Endangered Species Act, 16 U.S.C. 1538. We conclude that the present definition exceeds the scope of authority conferred by Section 9. We recommend that the Service's definition of "harm" be clarified so that only those habitat modifications that [page 29,491] actually injure or kill wildlife are subject to Section 9 criminal penalties.

Discussion

Section 9 of the Endangered Species Act (ESA), 16 U.S.C. 1538, makes it illegal to "take" an endangered species of fish or wildlife. That term is defined as follows:

The term "take" means to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture or collect, or to attempt to engage in any such conduct.

16 U.S.C. 1532(1). Fish and Wildlife Service Regulations define "harm" as follows:

"Harm" in the definition of "take" in the Act means an act or omission which actually injures or kills wildlife, including acts which annoy it to such an extent as to

significantly disrupt essential behavioral patterns, which include, but are not limited to, breeding, feeding or sheltering; *significant environmental modification or degradation which has such effects is included within the meaning of "harm."*

50 C.F.R. 17.3 (emphasis added).

This definition contains a significant ambiguity. If the words "such effects" are read to refer to the phrase "significantly disrupt essential behavioral patterns," then any significant environmental modification or degradation that disrupts essential behavioral patterns will fall under the definition of harm, regardless of whether an actual killing or injuring of wildlife is demonstrated. Under such an interpretation a showing of habitat modification *alone* would be sufficient to invoke the criminal penalties of Section 9. As discussed below, such a result is inconsistent with the intent of Congress.¹

A. *The Endangered Species Act*

ESA concerns itself with two major causes of species decline: (1) the commercial and sport taking of individual animals, and (2) the destruction or degradation of species' habitats. The Act creates a bifurcated system for dealing with these distinct problems. Section 7, 16 U.S.C. 1536, requires federal agencies to insure that actions taken are not likely "to jeopardize the continued existence of any endangered species or threatened species or result in the destruction or adverse modification of habitat of such

¹ Each of the four published articles that has considered the subject concludes that the Service's definition is overbroad. Bean, *The Evolution of National Wildlife Law* 395-97 (1977); Note, *Endangered Species Act: Constitutional Tension and Regulatory Discord*, 4 Colum. J. Env't'l L. 97, 100 n. 19 (1977); Note, *Endangered Species of 1973: Preservation or Pandemonium?* 5 Env't'l L. 29, 30-41 (1974); Note, *Obligations of Federal Agencies Under Section 7 of the Endangered Species Act of 1973*, 28 Stan. L. Rev. 1247, 1251 n. 31 (1978).

species . . .” Further, Section 5 authorizes land acquisitions as an additional means for preserving the habitat of listed species. 16 U.S.C. § 1534. Together, these two sections were designed to address the threatened destruction of habitat for listed species. Section 9, on the other hand, prohibits all action that constitute an actual taking of an endangered species of fish or wildlife. 16 U.S.C. 1538.

The Act’s definition of “take” contains a list of actions that illustrate the intended scope of the term: harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect or attempt to engage in any such conduct. With the possible exception of “harm,” these terms all represent forms of conduct that are directed against and likely to injure or kill *individual* wildlife. Under the principle of statutory construction, *ejusdem generis*, where general words accompany words of specific meaning, such general words are construed as applying only to actions of the same class as those specifically mentioned. *Goldsmith v. U.S.* 42 F.2d 133 (2d (Cir. 1948)). Applying this principle to the present construction problem, the term “harm” should be interpreted to include only those actions that are directed against, and likely to injure or kill, individual wildlife.

Also applicable here is the rule that provisions of a statute should not be construed in a manner that renders other provisions of the statute superfluous. If the Service’s definition of “harm” is interpreted to prevent habitat modifications, without a further finding of actual injury to a listed species, Section 9 could be violated in most instances in which Section 7 consultation is called for. That is, it would be counterproductive for a federal agency to initiate Section 7 consultation over a proposed private action that would significantly modify a listed species habitat, if such private activity were already proscribed under Section 9. Such a construction would render Section 7 largely unnecessary. *See Bean supra* n. 1 at 397.

B. *Legislative History*

The legislative history reinforces the distinction between the taking prohibition of Section 9 and the habitat protection provisions of Section 7. Representative Sullivan, whose committee reported the House bill, stated:

For the most part, the principal threat to animals stems from the destruction of their *habitat*. The destruction may be intentional, as would be the case in clearing of fields and forests for development of resource extraction, or it may be unintentional, as in the case of the spread of pesticides beyond their target area. Whether it is intentional or not, however, the result is unfortunate for the species of animals that depends on that habitat, most [of] whom are already living on the edge of survival. H.R. 37 will meet this problem by providing funds for acquisition of critical habitat. It will also enable the Department of Agriculture to cooperate with willing landowners who desire to assist in the protection of endangered species, but who are understandably unwilling to do so at excessive cost to themselves.

Another hazard to endangered species arises from those who would capture or kill them, for pleasure or profit. There is no way that the Congress can make it less pleasurable for a person to take an animal, but we can certainly make it less profitable for them to do so. (emphasis added)

119 Cong. Rec. H8-18 (daily ed. Sept. 18, 1973).

The fact that Congress considered the problems of takings and habitat modifications separately does not, of course, preclude the possibility of overlap between the two regulatory schemes. Indeed, Congress seemed to anticipate such overlap when it made the following statement, taken from the House Report:

"Take" is defined broadly. It includes *harassment*, whether intentional or not. This would allow for example, the Secretary to regulate or prohibit the activities of bird-

watchers where the effect of those activities might disturb the birds and make it difficult for them to hatch or raise their young. (emphasis added)

On its face this statement implies that an action such as habitat modifications which do not result in the actual injuring or killing of wildlife may nonetheless constitute a taking ("where the effects of these activities *might* disturb birds . . ."). We think it noteworthy, however, that the statement is limited to acts of harassment. "Harass" is defined at 50 C.F.R. 17.3 as follows:

"Harass" in the definition of "take" in the Act means *an intentional or negligent act or omission which creates the likelihood of injury to wildlife by annoying it to such an extent as to significantly disrupt normal behavioral patterns which include, but are not limited to, breeding, feeding or sheltering.* (emphasis added)

Under this definition two elements must be shown before a finding of harassment can be made: (1) likelihood of injury to wildlife, and (2) some degree of fault, either intentional or negligent. Because the definition contains an element of fault, it will not result in criminal liability for habitat modifications unless it is shown that the defendant knew or reasonably should have known that his actions would be likely to injure wildlife. Thus a private landowner who wishes to develop land that serves as habitat for an endangered species may do so if reasonable measures are taken to avoid injury to wildlife. The same is not true, however, of the definition of "harm." That definition adopts a strict liability standard which would impose criminal penalties on habitat modifications generally regardless of fault. Thus under the definition of "harm" a private landowner may be criminally liable for significant habitat modifications regardless of the reasonableness of his efforts to mitigate harm to individual wildlife.

An early version of the bill that became ESA specifically included "destruction, modification, or curtailment

of habitat or range" within the definition of "take" but this was deleted from the final act. S. 1983, 93d Cong., 1st Sess. § 3(6)(A)(1973). Such deletions generally militate against a conclusion that Congress intended a result that it expressly declined to enact. *See Gulf Oil Corp. v Copp Paving Co.*, 419 U.S. 186 (1974). Accordingly, the Service's definition of "harm" should be clarified so that only those habitat modifications that result in the actual killing or injuring of wildlife will be subject to Section 9 criminal penalties.

D. Case Law

The limited case law interpreting the definition of "harm" indicates judicial confusion over the proper scope of the term. The Supreme Court mentioned the definition of "harm" in *TVA v. Hill*, 437 U.S. 153 (1978), [page 29,492] but did not clarify its meaning. It said in regard to the Tellico Dam situation, "[w]e do not understand how TVA intends to operate Tellico Dam without 'harming' the sail darter." 437 U.S. at 184 n. 30. We interpret the court's statement only to apply to the situation where an action would both degrade habitat and kill individual fish.² Such an interpretation is consistent with the approach adopted in this memorandum.

Only two cases have thus far interpreted the concept of "harm". In *Sierra Club v. Froehlke*, 534 F.2d 1289 (8th Cir. 1976), the Sierra Club sought to enjoin construction of a proposed dam alleging, *inter alia*, a violation of Section 9 of the Endangered Species Act. In a brief discussion, of limited, if any, assistance on the habitat modifica-

² The Supreme Court in *TVA v. Hill* recited the findings of the district court that construction of Tellico Dam "would make it highly probable that snail darter eggs would smother . . ." and that "[the snail darter's] primary source of food, snails, would probably not survive." 437 U.S. at 165 N. 16. We assume that the Supreme Court expected the destruction of the species' primary food source to result in the killing of individual fish.

tion question, the court rejected plaintiffs' taking allegation, noting that a violation of Section 9 "rests upon the asserted ground that the erection of the dam is a 'clear attempt to harass or harm' the Indiana bat." 534 F.2d at 1304. The court's statement would seem to imply that a showing of specific intent to harass or harm is necessary to prove a taking a position inconsistent with the strict liability prohibitions established by Sections 9 and 11 and the present regulatory definition. Significantly, however, *Froehlke* was decided prior to promulgation of the "harm" definition, 44 Fed. Reg. 44415 (September 26, 1975), and the court therefore lacked the benefit of an agency interpretation.³

The second case interpreting the definition of "harm" is *Palila v. Hawaii Department of Land and Natural Resources*, 471 F. Supp. 965 (D. Haw. 1979), *aff'd*, No. 79-4636 (9th Cir. Feb. 9, 1981). This case did, on its face, direct its attention to habitat modification. In *Palila*, Section 9 was invoked by the Sierra Club to prevent the State of Hawaii's wildlife agency from allowing feral goats and sheep to roam in the critical habitat of the Palila, an endangered bird species. The plaintiffs alleged that because the state had allowed the destruction of forest vegetation which provides the Palila's food, shelter and nest sites, a taking had occurred even though no killing or injuring of individual Palilas was demonstrated. The district court interpreted the Service's definition as follows:

"Take" is defined in the Act to include "harm" which in turn is defined in regulations propounded by the Secretary of the Interior to include "significant environmental modification or degradation" *which actually injures or kills wildlife*. (emphasis added)

³ The district court opinion in *Froehlke* was issued on March 19, 1975. The briefs in the court of appeals case were submitted to the court on September 10, 1975. Two weeks after the briefs were submitted to the court of appeals, the Fish and Wildlife Service issued its endangered species regulations defining the concept of harm. 44 Fed. Reg. 44415 (September 26, 1975).

471 F. Supp. at 995.⁴ In a brief opinion, the Ninth Circuit Court of Appeals affirmed the district court's decision in *Palila*. The court's discussion of the taking issue demonstrates fundamental confusion over the distinction between habitat modifications and takings. On the basis of the FWS definition of harm, the Ninth Circuit concluded that a taking had occurred. Slip op. at 287. The court's discussion of its finding strongly suggests that it confused the taking prohibition of Section 9 with the habitat modification provisions of Section 7. The court rested its conclusion on the fact that "it was shown that the Palila was endangered by the activity." *Id.* Citing *TVA v. Hill*, *supra*, the court noted its belief that its conclusion was consistent with the Act's legislative history which showed "that Congress was informed that the greatest threat to endangered species is the destruction of their natural habitat." *Id.*

As the result of the FWS overly broad definition of "harm", the Ninth Circuit decision in *Palila* erroneously supports the view that habitat modifications alone may constitute "harm." The implications of such a decision are far-reaching. The discussion set forth above indicates that the present definition of "harm," as interpreted by the

⁴ On its face this interpretation is in accord with the approach taken in this memorandum. The difficulty with *Palila* is that the standard was misapplied to the facts of the case. The district court, in a footnote, acknowledged that available estimates showed the Palila population to have actually increased since the onset of the state's grazing program, yet speculated that those estimates may have been "deceptively high" and went on to conclude that a taking had occurred. 471 F. Supp. at 988 n.2. Accordingly, the district court's recital of the proper rule notwithstanding, *Palila* can be read as holding that habitat modification alone may constitute "harm." Furthermore, the issue of whether the Service's definition of "harm" exceeds statutory authority was neither briefed by the parties nor addressed by the court in *Palila*. Under the rule of *Webster v. Fall*, 266 U.S. 507, 511 (1935), questions not brought to a court's attention "are not to be considered as having been so decided as to constitute precedents".

Court of Appeals in *Palila*, exceeds the statutory authority conferred by Section 9 of the Act. Accordingly, we recommend that the Service clarify its definition to prevent the result reached in *Palila*.

Conclusion

In view of the foregoing discussion, we recommend that the Service's definition of "harm" at 50 CFR 17.3 be modified to read as follows:

"Harm" in the definition of "take" in the Act means an act or omission which actually injures or kills wildlife.

J. Roy Spradley, Jr.

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DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

50 CFR Part 17

Endangered and Threatened Wildlife and Plants; Final
Redefinition of "Harm"

AGENCY: Fish and Wildlife Service, Interior.

ACTION: Final rule.

SUMMARY: This final rule is a redefinition of the Service regulation defining "harm" under section 9 of the Endangered Species Act, 50 CFR 17.3. "Harm" is redefined to mean any action, including habitat modification, which actually kills or injures wildlife, rather than the present interpretation which might be read to include habitat modification or degradation alone without further proof of death or injury. Habitat modification as injury would only be covered by the new definition if it significantly impaired essential behavioral patterns of a listed species.

DATE: This rule becomes effective November 4, 1981.

ADDRESSES: Questions concerning this rule may be addressed to the Director [OES], U.S. Fish and Wildlife Service, Department of the Interior, Washington, D.C. 20240. Comments and materials relating to the action are available by appointment for public inspection during normal business hours at the Service's Office of Endangered Species, Suite 500, 1000 N. Glebe Road, Arlington, Virginia.

FOR FURTHER INFORMATION CONTACT: Mr. John L. Spinks, Jr., Chief, Office of Endangered Species, U.S. Fish and Wildlife Service, U.S. Department of the Interior, Washington, D.C. 20240, (703) 235-2771.

SUPPLEMENTARY INFORMATION: On June 2, 1981, the Fish and Wildlife Service proposed to amend the definition of "harm" in its regulations under the Endangered Species Act at 50 CFR 17.3. 46 FR 29490 (June 2, 1981). That proposed rule invited public comment for a period of 60 days, ending on August 3, 1981. The notice proposed the redefinition on the grounds that the existing language could be construed as prohibiting the modification of habitat even where there was no injury to the listed endangered or threatened wildlife. The Office of the Solicitor, in a memorandum to the Director of the Fish and Wildlife Service, concluded that such application of Section 9 would go beyond the intent of Congress in the Act. Accordingly, the Associate Solicitor recommended that the definition be changed to obviate any such erroneous application. In addition, the issue had begun to appear in judicial opinions and the Service desired to clarify the definition to avoid any result which would be inconsistent with the Act. In proposing a redefinition, however, the Service did not intend to imply that significant habitat destruction which could be shown to injure protected wildlife through the impairment of its essential behavioral patterns was not subject to the Act. This misperception has been eliminated in the final rule.

The Service received numerous public comments from a variety of parties. Of the 328 comments received, 66 favored the redefinition as proposed, and 262 opposed the proposed redefinition. Approximately 30 of the comments received made substantive or analytical comments of varying degrees; the remaining letters simply voiced support or opposition for the proposed redefinition. The comments in support of the redefinition basically relied on the points contained in the Associate Solicitor's memo-

randum attached to the rulemaking. Some of the comments in favor of the redefinition, however, viewed the action as limiting "harm" to direct physical injury to an individual member of the wildlife species. This was not the intent of the Service and the final redefinition addresses that perception. The purpose of the redefinition was to preclude claims of a Section 9 taking for habitat modification alone without any attendant death or injury of the protected wildlife. Death or injury, however, may be caused by impairment of essential behavioral patterns which can have significant and permanent effects on a listed species. [Page 54,749] Many commenters suggested that the word "actually" be reinserted in the definition to bulwark the need for proven injury to a species due to a party's actions. This has been done.

Congress made its intent to protect species and their habitat very clear. It did not, however, express any intention to protect habitat under section 9 where there was no appurtenant showing of death or injury to a protected species. This was made clear in the preamble to the original definition of harm:

"Harm" covers actions . . . which actually (as opposed to potentially), cause injury . . .

By moving the concept of environmental degradation to the definition of "harm", potential restrictions on environmental modifications are expressly limited to those actions causing actual death or injury to a protected species of fish or wildlife. The actual consequences of such an action upon a listed species is paramount. 40 FR 44412, 44413 (September 26, 1975)

Thus, to the extent that comments recommended further limitations, they misconstrued the intent of the rulemaking. In the opinion of the Service, the final redefinition sufficiently clarifies the restraints of section 9 so as to avoid injury to protected wildlife due to significant

habitat modification, while at the same time precluding a taking where no actual injury is shown.

Similarly, parties who opposed the redefinition perceived it as eliminating any protection against injury due to significant habitat modification. Again, this was not the intent of the Service in the redefinition. This concern, of course, is unfounded because section 9's threshold does focus on individual members of a protected species. In addition, the final redefinition makes it clear that the concept is not so limited.

The comments raised a number of specific objections to the proposed redefinition. The predominant comments are addressed individually below.

Comment—A number of comments stated that the proposed redefinition was superfluous because it defined "harm" using terms that were already in Congress' definition of "take."

Response—This comment fails to appreciate that Congress intended to create a definition of take which included all of the various ways of killing or injuring protected wildlife. Congress defined "take" as meaning to "harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect * * *". It is obvious that there is considerable overlap in many of these terms and it would be a fruitless and impractical exercise to attempt to define any one of these terms to the exclusion of the others so as to have no overlap of prohibited actions.

Comment—A number of comments challenged the ejusdem generis argument of the legal memorandum attached to the proposal, saying that the opinion's analysis of the Act on these grounds was erroneous.

Response—In the opinion of the Service, this comment fails to take the ejusdem generis argument in context. The purpose of the rulemaking was to make it clear that an *actual* injury to a listed species must be found for there to be a taking under section 9. The issue under examination was whether habitat modification alone, without the

kind of injury or harm envisioned in the definition of "take", was a violation of section 9. The opinion concluded that it was not and no substantive comments were received to the contrary. "Harm" was being examined to see if it could be read as meaning habitat modification alone—a meaning that an early version of S. 1983, 93d Cong. 1st Sess. Section 3(b)(A) might have given it. In view of the specificity contained in the definition of take finally enacted, it was concluded that no such meaning could be given to harm.

Comment—The principal objection raised by both substantive and nonsubstantive comments was that the redefinition was inconsistent with the intent of Congress and with the findings of Congress under the Act that habitat destruction is one of the two major causes of extinction.

Response—This view was partly due to public misperception of the purpose and scope of the proposal. The Service agrees that where there is no legislative history specifically on point for a given section, the overall intent of Congress should control. Nonetheless, this rule of construction cannot be used to convert section 9 into a habitat protection provision; as other comments pointed out, that is the purpose of sections 5 and 7 of the Act. Of course, the Service recognizes that in some cases, there is critical need of protected wildlife for specific habitat. Significant modification or destruction of such habitat, where an actual injury occurs, including impairment of essential behavioral patterns, will still be viewed as being subject to section 9 of the Act.

Comment—Many comments also cited legislative history which showed that Congress intended the term "take" to be construed very broadly.

Response—While recognizing the Congressional intent, the Service feels that the legislative history cannot be read to prohibit habitat modification under section 9 without actual injury. The examples given, in each instance, were in the context of injury to a species and not to habitat.

As the final rule makes clear, where the habitat modification results in injury, the action is subject to section 9.

Comment—A few comments disagreed with the Service's finding of ambiguity in the present definition and contended that it also requires death or injury.

Response—The Service recognizes that the existing definition can be read this way and, indeed, that was the Service's original intent in 1975. Nonetheless, to the extent that there is a latent ambiguity which implies criminal and civil liability not intended by Congress, the Service feels it appropriate to clarify the definition.

Comment—The issue of section 7/section 9 conflict was also raised a number of times, the comments disagreeing that the existing definition might render section 7 superfluous.

Response—Again, this comment is only valid to the extent that the redefinition is viewed as eliminating the concept of injury by habitat modification. If habitat modification alone were covered by section 9, it also could be argued that much of section 7 would be theoretically superfluous. This was the context of the section 7/section 9 discussion and the majority of the comments fail to realize this. This preamble and the wording of the final definition should obviate this misperception.

Comment—Many comments differed strongly with the legal memorandum's discussion of *Palila v. Hawaii Department of Land and Natural Resources*, 471 F.Supp. 965 (D. Haw. 1979), *aff'd*, 639 F.2d 495 (9th Cir. 1961), and some even suggested that the Service's action was unconstitutional. The principal objection was that *Palila* was correctly decided and that the Service redefinition was intended to avoid the result of that case.

Response—The Solicitor's Office opinion disagrees. The *Palila* decisions can be read to incorrectly *imply* that under the Services definition of "harm" a taking may occur from habitat modification alone. The question of injury to a population is, of course, one of fact, but, the Solicitor's Office was concerned that the District Court miscon-

strued the biological evidence presented at trial and substituted its own judgment in finding injury to the Palila. To the extent that courts have now started to discuss and rely upon the Service's definition of harm, it is important to clarify what the Service intended the definition to mean. Although the legal memorandum [Page 54,750] attached to the rulemaking did propose a clarification "to prevent the result reached in *Palila*". 46 FR 29492, the "result" referred to was the implication in the opinions that section 9 might apply to habitat modification absent death or injury.

Comment—At least one substantive comment apparently argues that habitat modification alone was intended by Congress to be a taking prohibited by section 9. The precise objection of the comment is unclear, however, because the examples and discussion in the comment continually refer to the injury and harmful effects on species which can be caused by habitat destruction.

Response—To the extent that the comment contends that habitat modification alone is a taking, it is without support in the Act or legislative history. The comment provides no substantive support and, indeed, is at odds with the majority of comments which concede that such habitat modification or degradation must be coupled with death or injury to a listed species. As previously stated, the Service agrees with the many other comments which recognized the need for actual injury. To the extent that this comment intended to concede the need for injury, the final definition addresses its concerns.

The bulk of criticism of the proposed redefinition was aimed at the legal opinion and questioned its support for a redefinition which eliminated habitat modification as a potential source of injury. As a general matter, these complaints are inapposite since this was never the intention of the redefinition. In the Service's opinion, the proposed redefinition would still have encompassed this type of injury. Nonetheless, the final redefinition eliminates this

problem and either answers or makes moot all of the legal questions raised in the comments.

Although some of the comments specifically argued that habitat modification alone is a prohibited taking under section 9, in the opinion of the Service, Congress expressed no such intent.

The final definition adds the word "actually" before the words "kills or injures" in response to comments requesting this addition to clarify that a standard of actual, adverse effects applies to section 9 takings. In addition, the phrase "or omission" was deleted since the Service feels that "act" is inclusive of either commissions or omissions which would be prohibited by section 9.

In response to the broad misperception of the intent of the rule, an additional sentence has been added which is similar to the original definition's language. This additional language makes it clear that habitat modification or degradation, standing alone, is not a taking pursuant to section 9. To be subject to section 9, the modification or degradation must be *significant*, must *significantly impair essential* behavioral patterns, and must result in *actual* injury to a protected wildlife species. The word "impair" was substituted for "disrupt" to limit harm to situations where a behavioral pattern was adversely affected and not simply disturbed on a temporary basis with no consequent injury to the protected species. The other terms are retained from the original definition to provide the standards by which such takings are to be judged.

National Environmental Policy Act

An environmental assessment has been prepared in conjunction with this redefinition. Based on the record compiled in this decisionmaking and the environmental assessment, the Assistant Secretary for Fish and Wildlife and Parks has determined that this is not a major Federal action which would significantly affect the quality of the human environment within the meaning of Section 102

(2)(C) of the National Environmental Policy Act. 42 U.S.C. 4332(2)(C).

Note.—The Department of the Interior has determined that this is not a major rule and does not require preparation of a regulatory analysis under Executive Order 12291. The Department has also determined that this rule will not have a significant economic impact on a substantial number of small entities under the Regulatory Flexibility Act. These determinations are discussed in more detail in a Determination of Effects which has been prepared by the U.S. Fish and Wildlife Service.

PART 17—ENDANGERED AND THREATENED WILDLIFE AND PLANTS

Accordingly, the definition of “harm” in 50 CFR 17.3 is revised to read as follows:

§ 17.3 Definitions.

* * * * *

“Harm” in the definition of “take” in the Act means an act which actually kills or injures wildlife. Such act may include significant habitat modification or degradation where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering.

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Dated: October 1, 1981.

G. Ray Arnett,

Assistant Secretary for Fish and Wildlife and Parks.

SUPREME COURT OF THE UNITED STATES

No. 94-859

BRUCE BABBITT, Secretary of the Interior, ET AL.,
PETITIONERS

v.

SWEET HOME CHAPTER OF COMMUNITIES FOR A
GREAT OREGON, ET AL.

ORDER ALLOWING CERTIORARI

Filed January 6, 1995

The petition herein for a writ of certiorari to the United States Court of Appeals for the District of Columbia Circuit is granted.

January 6, 1995

